

		The Court sustains the demurrer to the eighth cause of action. Ninth cause of action for declaratory relief To qualify for declaratory relief, an action must present two essential elements: 1) a proper subject of declaratory relief, and 2) an actual controversy involving justiciable questions relating to the rights of obligations of a party. (<i>Lee v. Silveira</i> (2016) 6 Cal.App.5th 527, 546; Code Civ. Proc. § 1060.) The “proper subjects” of declaratory relief are set forth in Code of Civil Procedure section 1060 and other statutes, and include contracts and written instruments and statutory interpretation. (See <i>Brownfield v. Daniel Freeman Marina Hospital</i> (1989) 208 Cal.App.3d 405, 410; <i>Doan v. State Farm General Ins. Co.</i> (2011) 195 Cal.App.4th 1082, 1095.) Plaintiffs “request that the Court declare the rights of the parties in this matter.” (TAC ¶ 150.) Plaintiffs contend “Dang[’s] acts and conduct are proper subject for declaratory relief because he entered into an agreement with Tong without Model Builders, Inc. authority.” (Opp. at 12:9-11.) As discussed above, the court did not find Dang to be a party to the agreement at issue, and Plaintiffs have not identified any other contract or written instrument under which they seek a declaration of their rights with respect to Dang. Moreover, Plaintiffs have not stated a claim against Dang for the reasons discussed above. The Court sustains the demurrer to the ninth cause of action.
3	Farmanfarmian v. Ardaian 2025-01487796 Demurrer to Amended Complaint CMC	The Demurrer of Defendants Cyrus Ardalan and Juni Farmanfarmaian to the First Amended Complaint (FAC) of Plaintiff Nezam Farmanfarmaian is OVERRULED as moot. Defendants demur on the grounds that another action is pending in which Plaintiff has asserted substantially identical claims in a cross-complaint. (Case No. 2023-01338835.) Code of Civil Procedure section 430.10(c) state a demurrer may be brought on the grounds that, “There is another action pending between the same parties on the same cause of action.” Plaintiff concedes the FAC is identical as to Defendant Cyrus Ardalan, but contends that in the 2023 action,

		Defendant Juni Farmanfarmaian Ardalan has been voluntarily dismissed, so this separate complaint is appropriate against one Defendant. However, Plaintiff asserts that consolidation of the two matters will resolve the issue. In reply, moving Defendants state, "Since Plaintiff has stipulated to consolidation of the two cases, that is exactly what the court should now order in lieu of sustaining the demurrer. Consolidation will effectively serve the same purpose as abatement." Code of Civil Procedure section 1048(a) states, "(a) When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." Here, the Court intends to consolidate this case and Case No. 2023-01338835, as agreed upon by the parties, rendering the demurrer moot. The parties shall appear at the hearing to discuss whether consolidations should be for all purposes including trial.
4	First American Title Insurance v. Gomez 2025-01460028 Demurrer to Cross Complaint	The Demurrer of Cross-Defendants Fidelity National Title Insurance Company, Fidelity National Title Company, Chicago Title Insurance Company, and Chicago Title Company to the Cross-Complaint of Mariquita S. Gomez is SUSTAINED with leave to amend. The Cross-Complaint alleges claims related to the movants' alleged failure to indemnify and defend Defendant/Cross-Complainant in relation to the claims alleged against her in the Complaint. Cross-Defendants contend (1) the claims against them are ambiguous because Cross-Complainant alleges liability of four different entities without adequately explaining the different bases for liability, and (2) the negligence claim is not viable against a title insurer. As to Fidelity National Title Company, movants argue there are no facts alleged to support liability, only the allegation that it acquired other Cross-Defendants in 2000. As to Fidelity National Title Insurance Company and Chicago Title Company, movants contend they were not parties to the title insurance policy, rather they were